

A close-up photograph of a hand holding a black fountain pen with gold accents, poised to write on a document. The document appears to be a patent application form, with various fields and text visible, though blurred. The background is out of focus, showing what might be a desk or office environment.

THE INDIAN PATENT ACT - 1970

INTELLECTUAL PROPERTY

- Intellectual property is the product or creation of the mind. It is different from other properties in term that it is “intangible”. Hence it needs some different way for its protection.

INTELLECTUAL PROPERTY RIGHTS

- IPR is the body of law developed to protect the creative people who have disclosed their invention for the benefit of mankind. This protects their invention from being copied or imitated without their consent.



THE INDIAN PATENT

ACT

- In India the grant of patents is governed by the patent Act 1970 and Rules 1972.
- The patents granted under the act are operative in the whole of India.



HISTORY

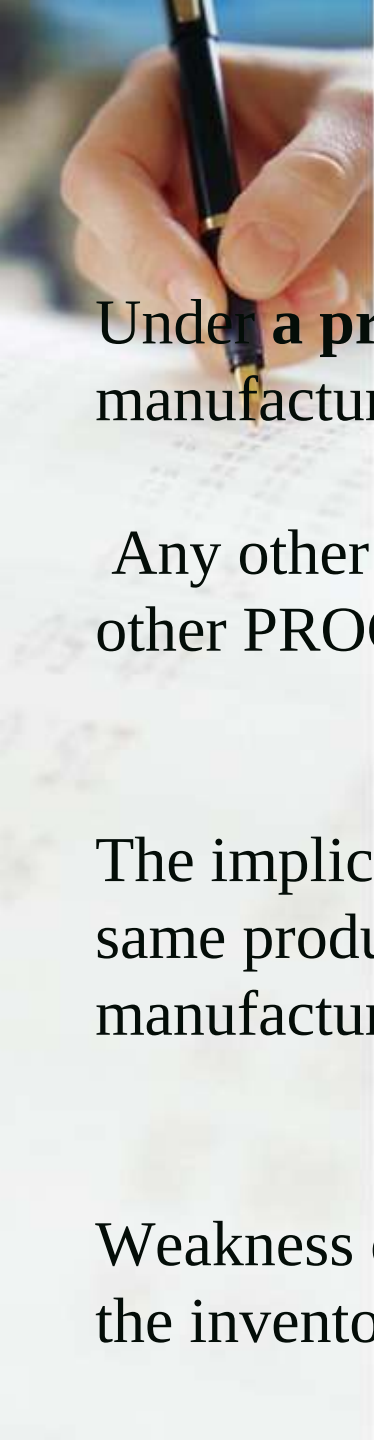
- ❖ The Patent Law of 1856
- ❖ First law passes by British ,The Patent and Designs Act, 1911.(product patent)
- ❖ India passed The Patents Act, 1970 and Rules 1972.(process patent)-drugs-largest producer
- ❖ The Patent amendment act 2005



The **developed countries** follow **product patent** system.

On the other, **process patent** system is preferred by the **developing world**.

The two systems are known for their different levels of protection to inventors.

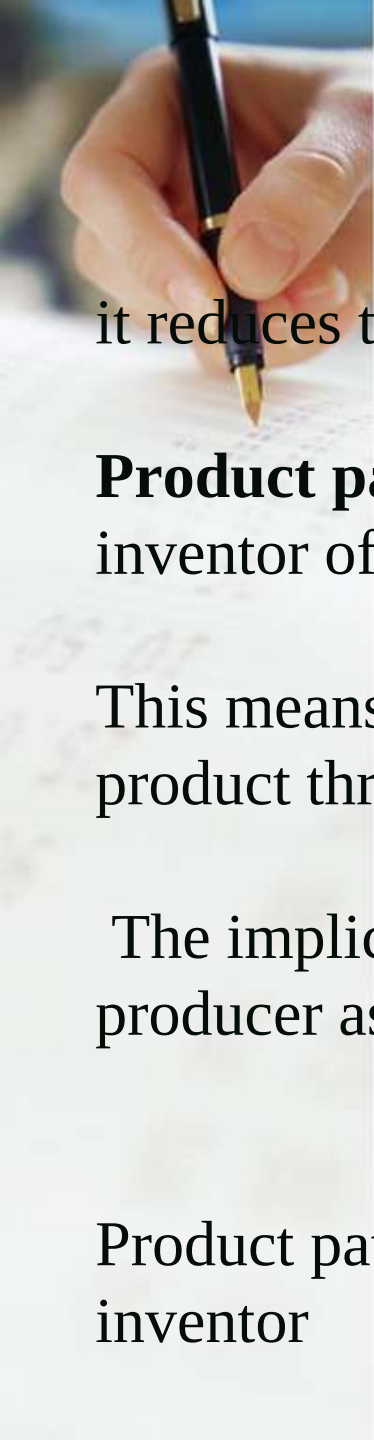
A close-up photograph of a hand holding a black pen with gold accents, writing on a white document. The pen is positioned vertically, and the hand is visible from the side, with fingers gripping the pen. The background is slightly blurred, showing more of the document and the hand.

Under a **process patent**, the patent is granted for a particular manufacturing process, and not for the product itself.

Any other person can produce the same product through some other PROCESS, modifying the various parameters.

The implication is that there will be more than one producer for the same product because of the possibility of different process for the manufacturing of the product.

Weakness of the process patent is that it gives less protection for the inventor. There is high tendency for competitors

A close-up photograph of a hand holding a black pen with a gold-colored tip, writing on a white document. The hand is positioned in the upper left corner of the frame, and the pen is angled downwards towards the bottom left. The background is slightly blurred, showing more of the document and the hand.

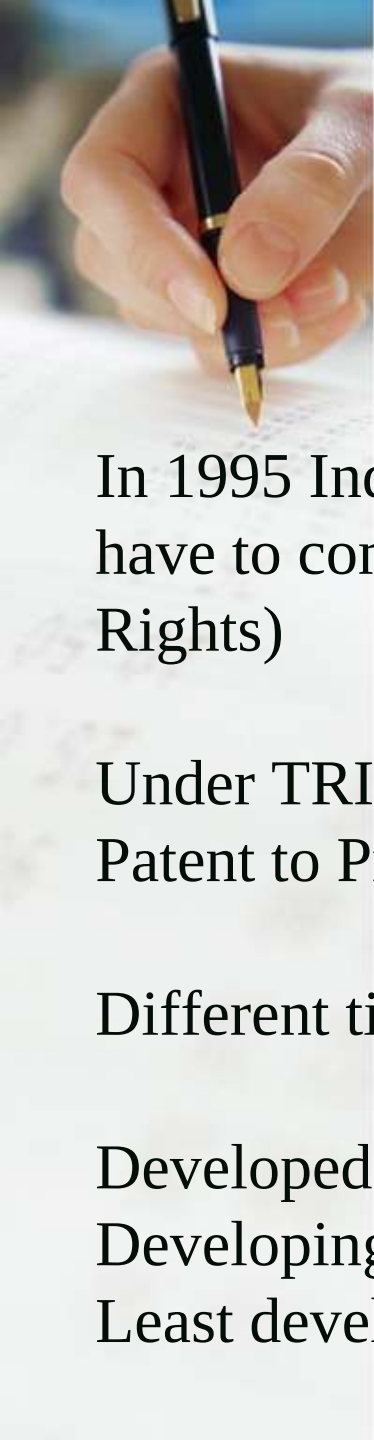
it reduces the element of monopoly

Product patent, it is an exclusive right given to the original inventor of a product.

This means that no other manufacturer can provide the same product through the same or any other process.

The implication is that there will not be a competitor for the producer as it is the product which is patented.

Product patent system gives higher level of protection to the inventor



In 1995 India joined WTO and the impact was member countries have to comply with TRIPS(Trade Related Intellectual Property Rights)

Under TRIPS every member country have to shift from Process Patent to Product Patent

Different time period was given for the countries to shift

Developed countries- 1 year

Developing Countries – 10 years

Least developed countries – 11 years



In 2005 India adapted Product Patent

TRIPs follow the product patent

India's **1970** Patent Act allowed only **process patent** before it was amended in 2005 to comply with WTO's TRIPs provisions under which there is only product patents



What is a patent ?

- A patent is a grant from the government which confers on the guarantee for a limited period of time the exclusive privilege of making, selling and using the invention for which a patent has been granted



A patent is a monopoly right to a person who has invented a new and useful article or it is an improvement of an existing article or a new process of making an article

Why one should go for patent???

- ⌚ Prevention against leaking of invention through workmen

- ⌚ Prevent secret exploitation by competitor

- ⌚ On obtaining patent the patentee can lawfully enforce against infringers

Why patent is necessary ?

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graph TD; A[Why patent is necessary ?] --> B[To encourage research and development]; A --> C[Induces an inventor to disclose his invention]; A --> D[Stimulate capital investment affects economy]; A --> E[Encourages technology development]; A --> F[Encourages establishment of new industries];
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To encourage research and development

Induces an inventor to disclose his invention

Stimulate capital investment affects economy

Encourages technology development

Encourages establishment of new industries

NEED OF PATENT

To protect the creativity
of individual

To protect their invention
from being copied

To reward the inventor



A vertical image on the left side of the slide shows a hand holding a black pen with a gold nib, writing on a document. The document has some faint, handwritten text in red ink, including the numbers '05-01' and '187'.

Objective

To have right over invention

Sue any person who use his product

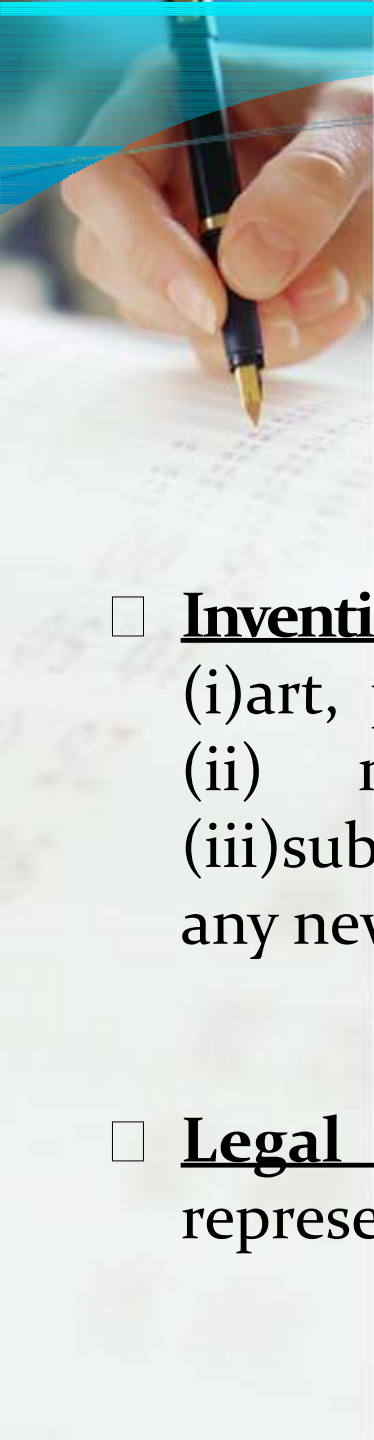
Right to sell

Absolute owner, has right to improve or modify the product or process

First owner of the invention

Objective of Patent

- contribute to the development of industries
- contributes to the promotion of technological innovation
- transfer and distribution of technology.

A hand holding a black pen with a gold nib, writing on a white document. The document has some faint, illegible text. The background is a light blue gradient with a wavy pattern.

Definitions and interpretation.

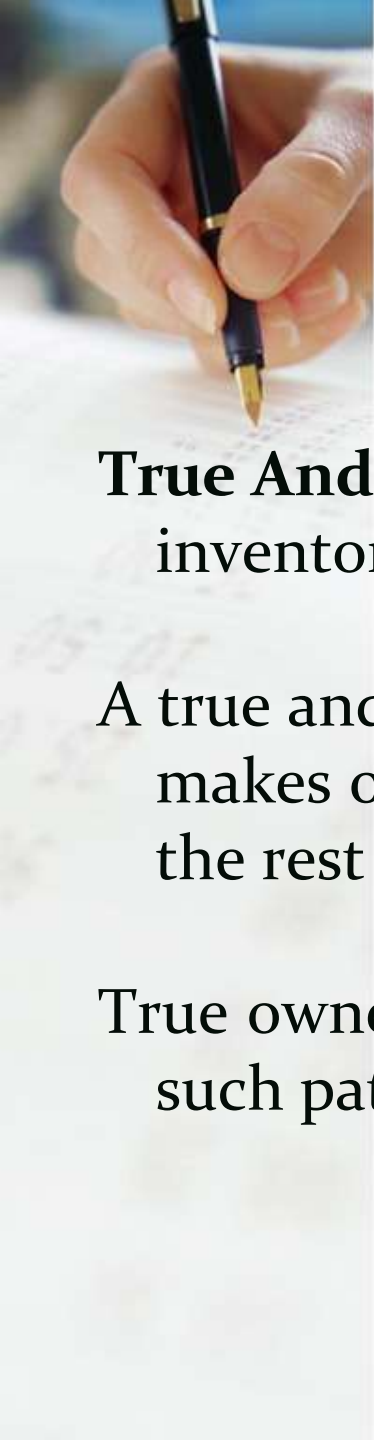
- **Invention** means any new and useful-
 - (i) art, process, method or manner of manufacture
 - (ii) machine, apparatus or other article
 - (iii) substance produced by manufacture, and includes any new and useful improvement of any of them.

- **Legal Representative** means a person who in law represents the estate of a deceased person

A close-up photograph of a hand holding a black pen with a gold nib, writing on a white document. The document has some faint, illegible text on it. The background is blurred.

Patentee means the person to whom the patent is granted and whose name is entered in the register of patent.

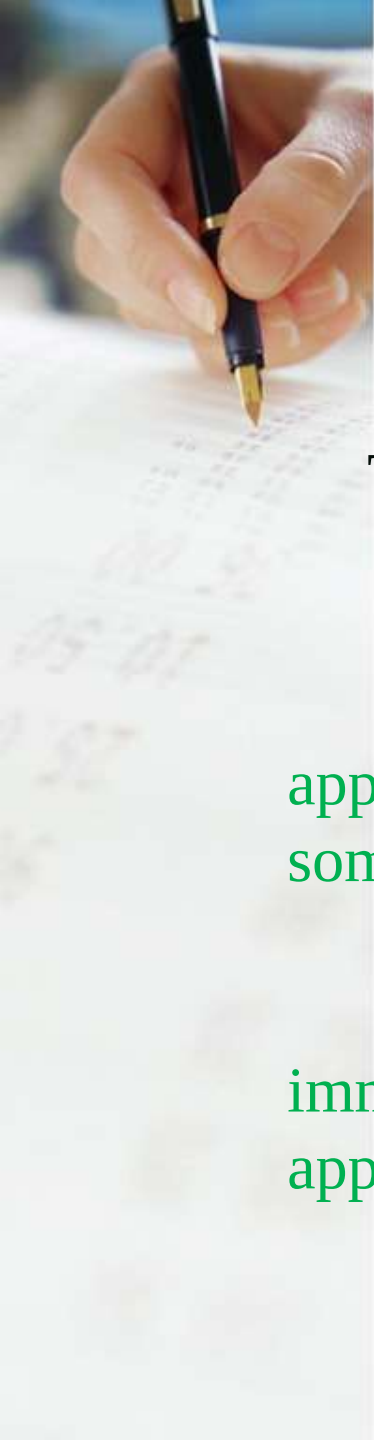
Assignee: Patent ownership is transferred to a company the instant the invention is made. This is done by a contract or agreement. Whatever inventions are made, they are immediately transfer to the company upon conception. The company is said to be the 'assignee' and the employee is the 'assignor'



True And First Inventor means a patentee is a true and first inventor.

A true and first inventor means a person who for the first time makes or declares about his invention through the patent to the rest of the world.

True owner will be decided on the basis of the date on which such patent is obtained

A close-up photograph of a hand holding a black pen with a gold nib, writing on a white document. The document has some faint, illegible text and a grid-like pattern. The background is blurred.

Who can apply for patent

True and first inventor- A person who first to convert his idea into an invention

Assignee of an inventor – if the inventor is unable to apply for the patent then he can assign the right to apply to someone else on behalf of inventor.

The legal representative – of any deceased person who, immediately before his death was entitled to make such an application.

Joint inventors



Purpose of getting a patent.....

- To enjoy the exclusive rights over the invention.
- The patent is to ensure commercial returns to the inventor for the time and money spend in generating a new product.

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The types of patent application

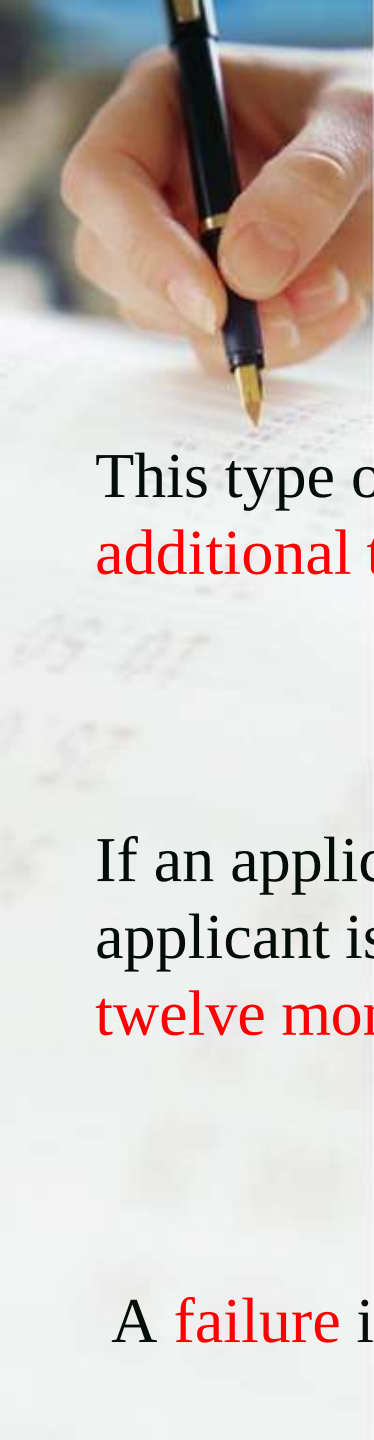
- **Provisional Application**
- **Ordinary or Non-Provisional Application**
 - **Convention Application**
 - **Patent of Addition**
 - **Divisional Application**



Provisional Application

A provisional application, also known as a **temporary application**, is filed when an invention is **under experimentation** and **isn't finalized**.

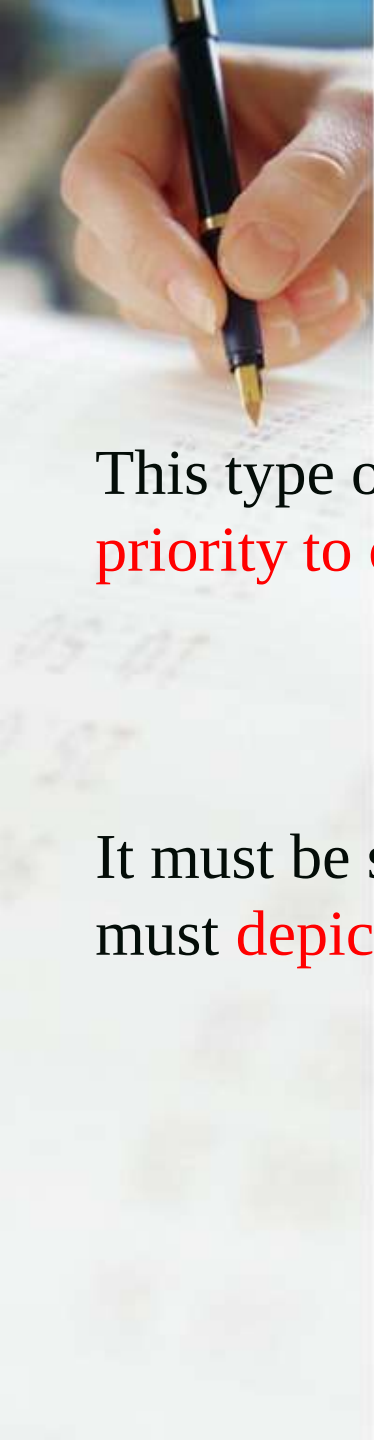
Moreover, it is a **preliminary application** which is filed before the patent office for **claiming priority**, as the Indian Patent Office follows the 'First to File' system (known popularly as the **First-Come-First-Served-Basis**)



This type of patent application is filed when an **invention requires additional time for development.**

If an application is supported by a provisional specification, the applicant is necessitated to file a **complete specification** within **twelve months** from the **date of filing a provisional application.**

A **failure** in this part would render the **application void.**

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Ordinary or Non-Provisional Application

This type of application is filed if the applicant **doesn't have any priority to claim**

It must be supported by a **complete specification**, the likes of which must **depict the invention in detail**.

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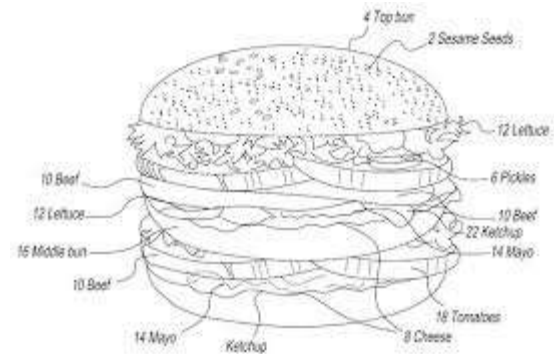
Complete specification can be filed in 2 ways

Direct Filing – wherein complete specification is initially filed with the Indian Patent Office without filing any corresponding provisional specification.

Subsequent Filing – wherein complete specification is filed subsequent to the filing of the corresponding provisional specification and claiming priority from the filed provisional specification.

complete specification include the following

- Title
- A introduction to the invention.
- The technical field of the invention.
- Background of the invention.
- Objects of the invention.
- Statement of the invention.
- A brief description of the drawings
- A detailed description of the invention.
- Claims
- Abstract



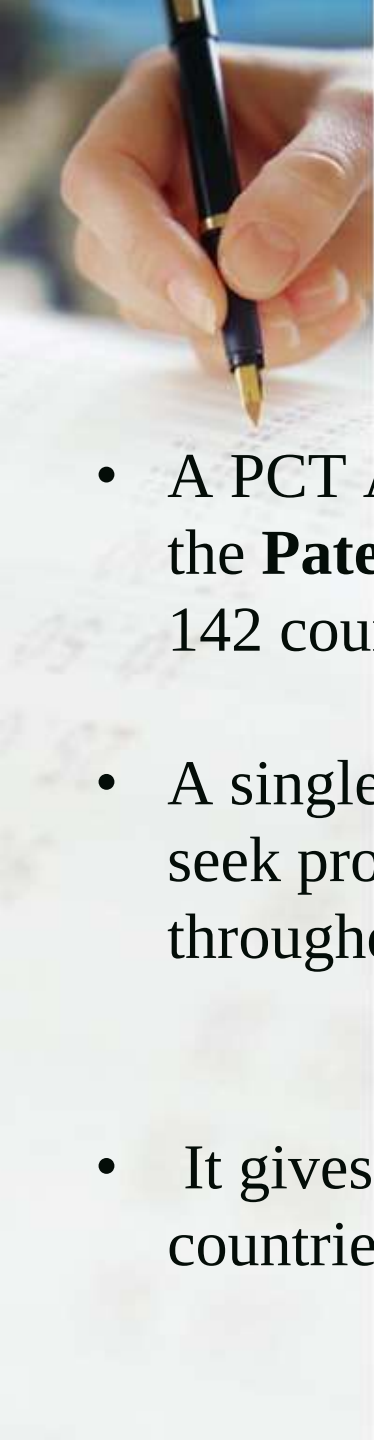


CONVENTION APPLICATION

A patent application that is **first filed in a convention country** and then **within the 12 months** from date of the application so made in the convention country is **filed in India** is known as convention patent application.

Basically a **convention application** is the **patent application** which **has already been filed in a country other than India**, and now the application for the same invention is being made in India.

In order to **get convention application status**, the applicant is required to **file the application** in the **Indian Patent Office within 12 months** from the date of first filing of a similar application in the convention country along with complete specifications.



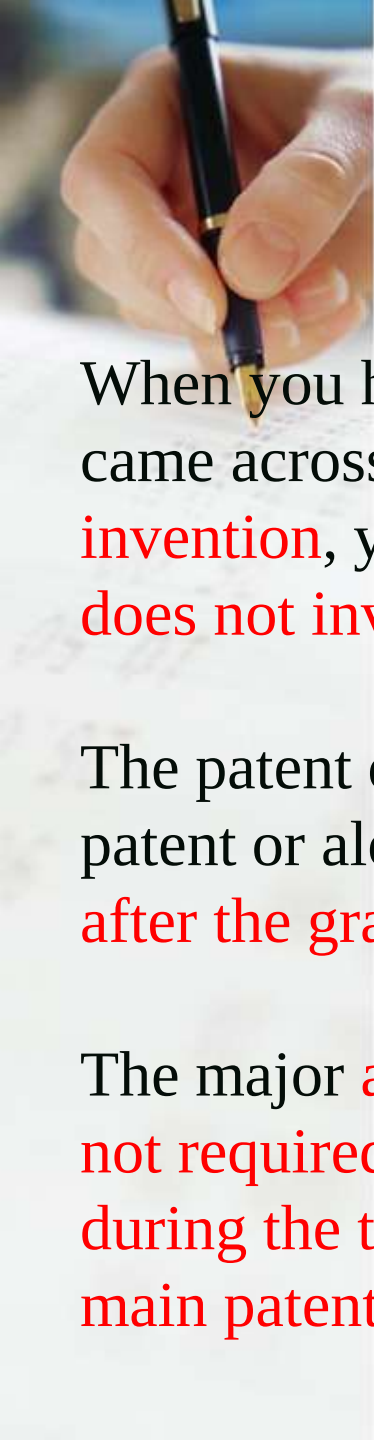
PCT INTERNATIONAL APPLICATION

- A PCT Application is an international application governed by the **Patent Cooperation Treaty**, and can be validated in upto 142 countries.
- A single international patent application can be filed in order to seek protection for an invention in up to 142 countries throughout the world.
- It gives the application 30/31 months to enter into various countries from the international filing date

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PCT NATIONAL PHASE APPLICATION

When an international application is made according to PCT designating India, an applicant can file the national phase application in India within 31 months from the international filing date



PATENT OF ADDITION

When you have already file for a patent application and now you came across a **new improvement of modification for the same invention**, you can go ahead for patent of addition if the invention **does not involve a substantial inventive step**.

The patent of addition can be **filed anytime** after filing the main patent or along with the main patent and it will only be granted **after the grant of main patent**.

The major **advantage** of filing for patent of addition is that you are **not required to pay separate renewal fee** for the patent of addition **during the term of the main patent** and **it expires** along with the **main patent**.

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DIVISIONAL APPLICATION

A patent is granted only for single patent therefore, in case a patent application claims **more than one invention** the applicant is required to claim or **file for a separate patent application** that is known as **divisional patent application**.

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Types Of Patents

- Three types of patent are granted under the provisions of the act, namely:

1. An Ordinary Patent

2. A Patent Of Addition

3. A Patent Of Convention

- A second type of classification of patent is:

1. Product Patent

2. Process Patent



Types of patent

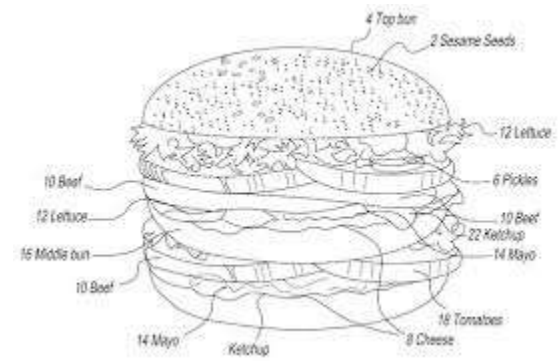
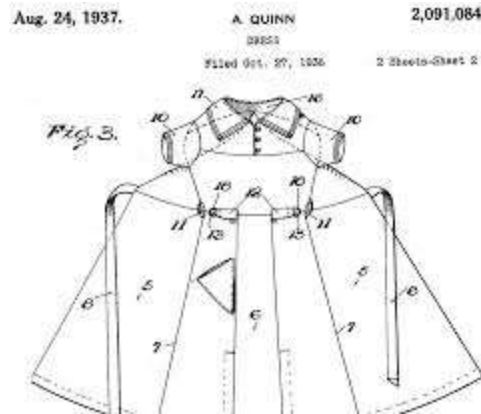
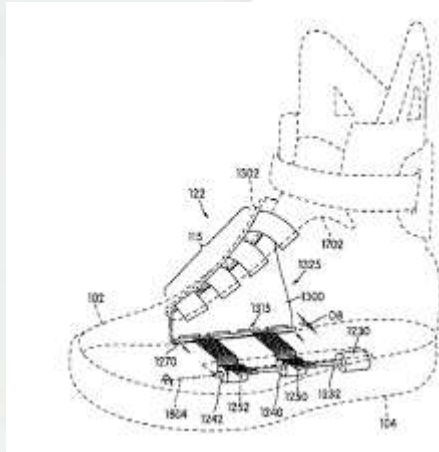
Utility patent

Design patent

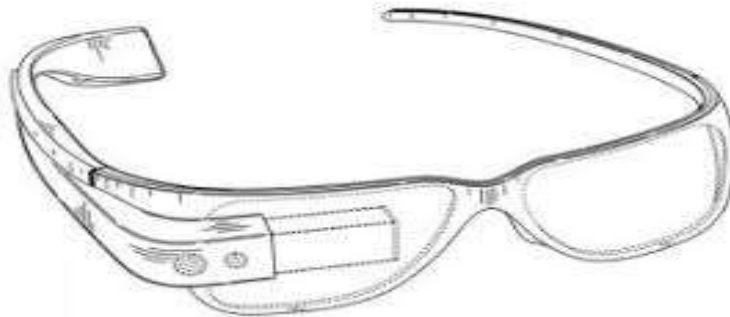
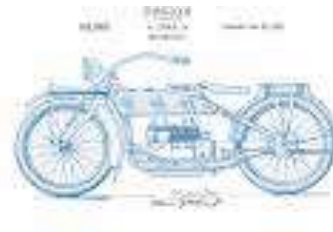
Plant patent

Utility patent

Anyone who creates an entirely new machine, process, chemical compound, manufactured product, material composition can apply for a utility patent.

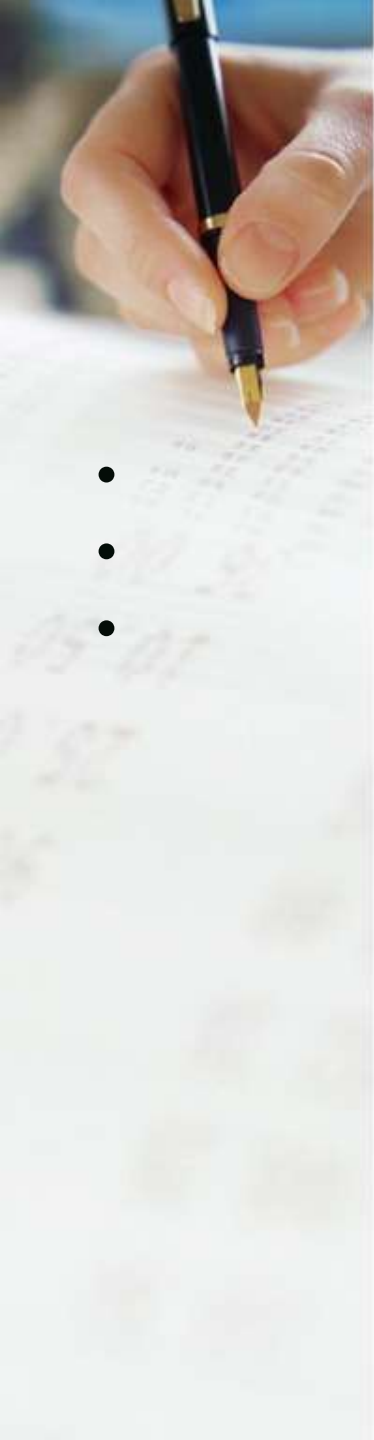


Design patent



Plant patent





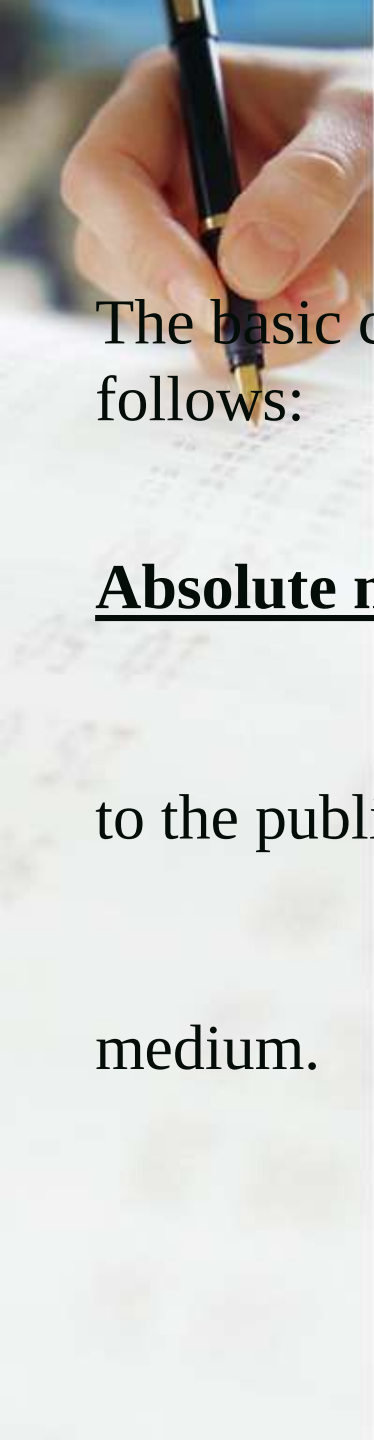
- This includes aesthetic designs (design patents)
- Products (utility patents)
- Reproducing plants (plant patents).



Patentable Inventions in India

Invention must

- ◆ Relates to a **process** or **product** or both
- ◆ Be new (**novel**)
- ◆ Involves an **inventive step**
- ◆ Be capable of **industrial application**
- ◆ Not fall under **section 3 and 4**

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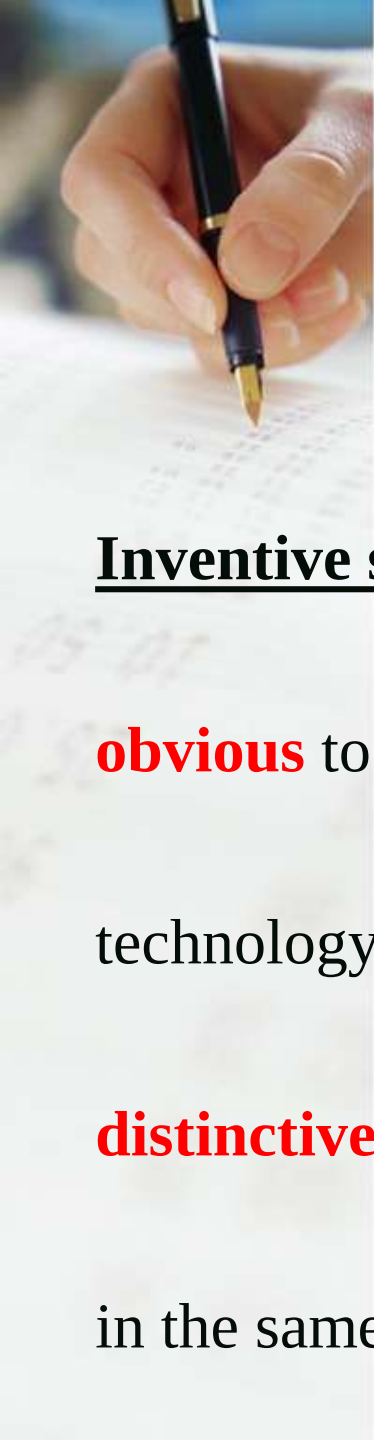
The basic criteria for patentability of an invention in India are as follows:

Absolute novelty – the invention **should be new** and not disclosed to the public anywhere in the world in any form or through any medium.



Martin Cooper of Motorola made the first publicized handheld mobile phone call on a prototype **DynaTAC** model on 3 April 1973.



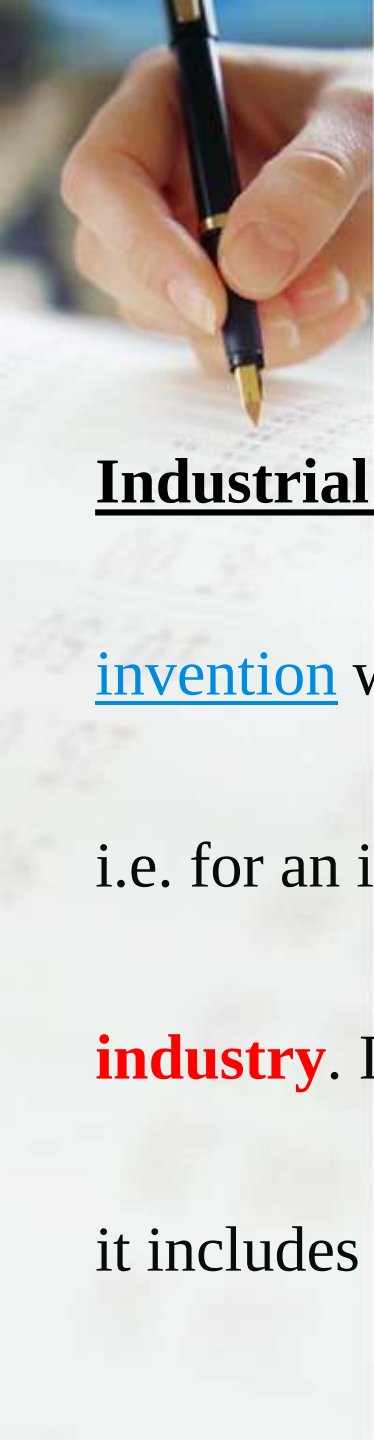


Inventive step/non-obviousness – the invention should **not be obvious** to a person skilled (**expert**) in the art in the relevant area of technology and should **involve an inventive feature** which is **distinctive(unique)** in nature from the **previous inventions** made in the same field.



LG K7i : The world's first phone with Mosquito Away technology





Industrial application – patent can only be granted for an

invention which is susceptible(capable) of industrial application,

i.e. for an invention which **can be made or used in some kind of**

industry. In this context, the concept of "industry" is far-reaching:

it includes agriculture, for instance

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Section 3 exclusions

Section 3(a)

- **Inventions contrary to well established natural laws**



Section 3(b)

Commercial exploitation or primary use of inventions, which is

➤ **Contrary to** public order or Morality

Examples

— Gambling machine,

Examples — Device for house-breaking ,



Section 3(b)

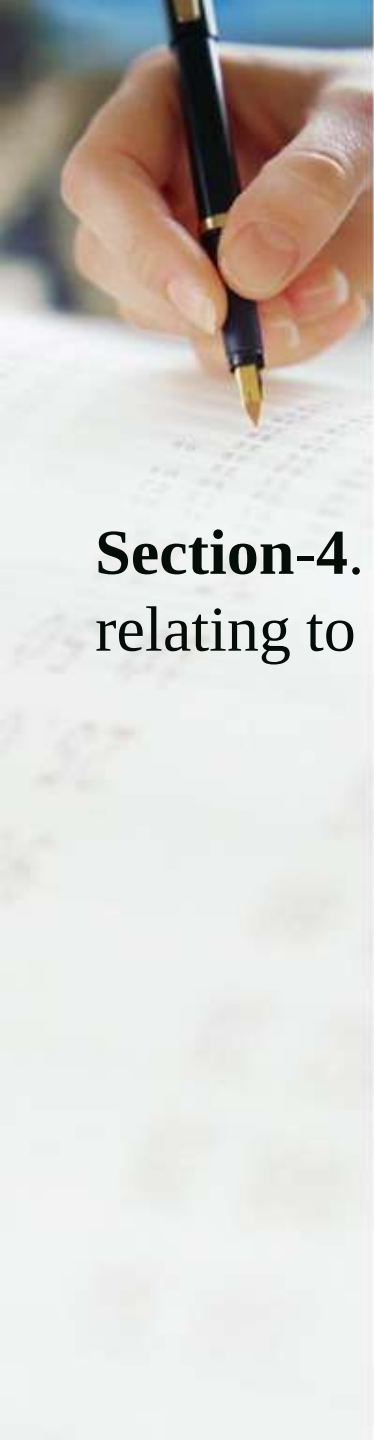
Commercial exploitation or primary use of inventions, which

➤ **Causes serious effect to**

- health or
- human, animal, plant life or
- to the environment

Examples

- Biological warfare material or device, weapons of mass destruction

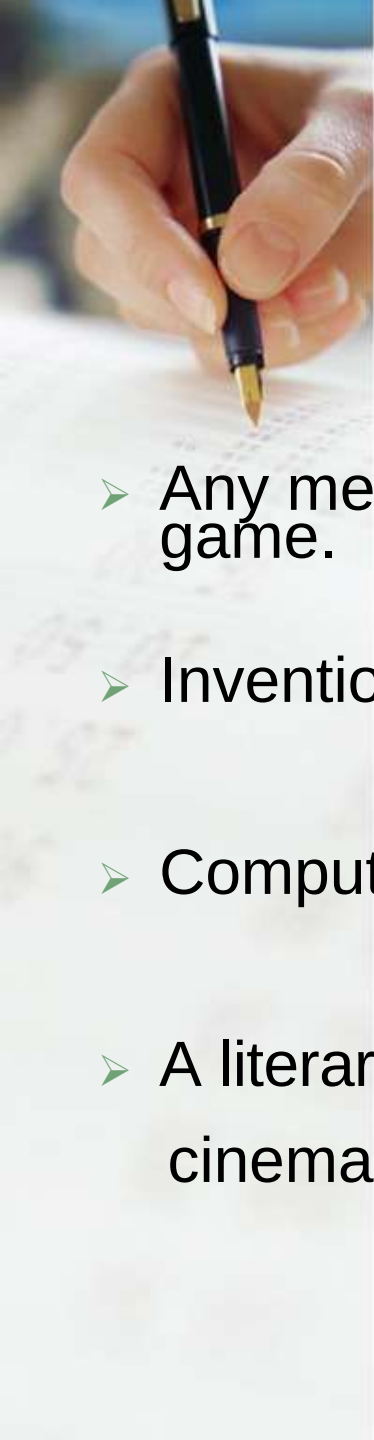


Section-4. No **patent** shall be granted in respect of an invention relating to atomic energy

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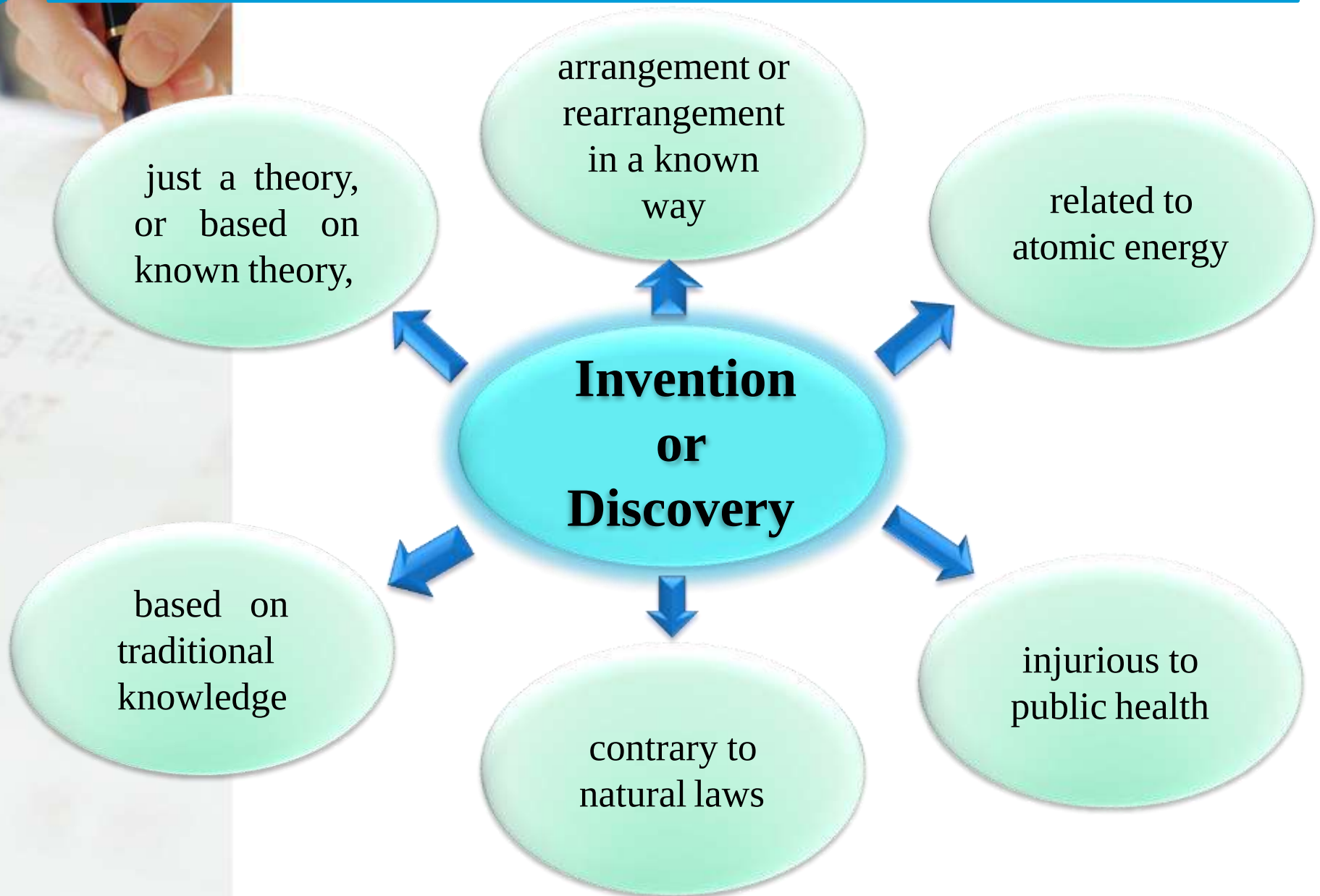
WHAT IS NOT PATENTABLE:

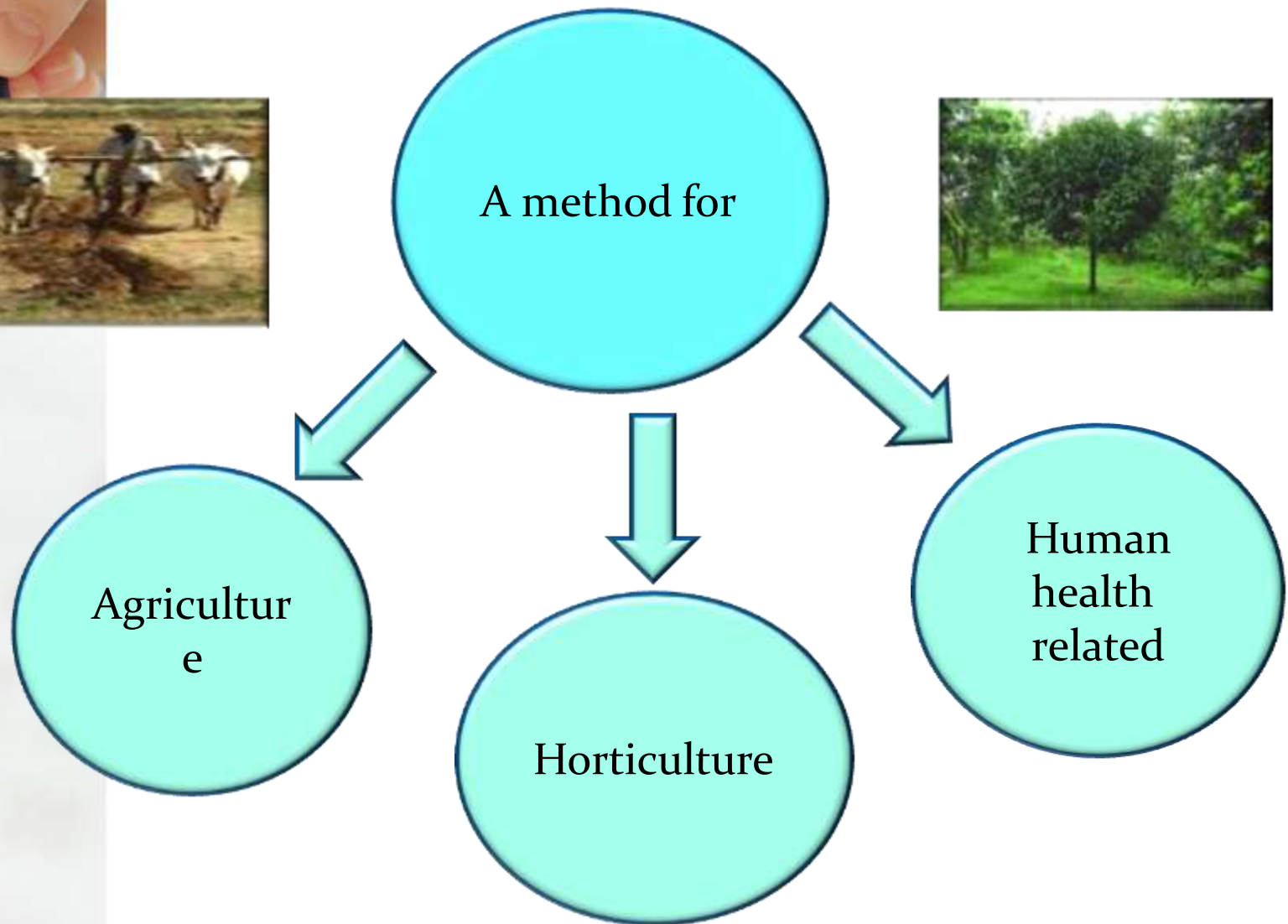
- An invention which is frivolous (**no use**)
- An invention which causes serious effect to human, animal or plant life or health or to the environment
- discovery of any living thing or non-living substances occurring in nature
- The mere arrangement or re-arrangement or duplication of known devices
- A method of agriculture or horticulture



- Any method of performing a mental task or playing a game.
- Inventions pertaining to Atomic energy
- Computer programs
- A literary, dramatic, musical or artistic work, cinematographic works and television productions

CHAPTER II: INVENTIONS NOT PATENTABLE





A close-up photograph of a hand holding a black pen with a gold nib, writing on a white document. The document has some faint, illegible text and a grid-like pattern. The background is blurred.

STAGES FROM FILING TO GRANT OF A PATENT or PROCEDURE TO GRANT PATENT

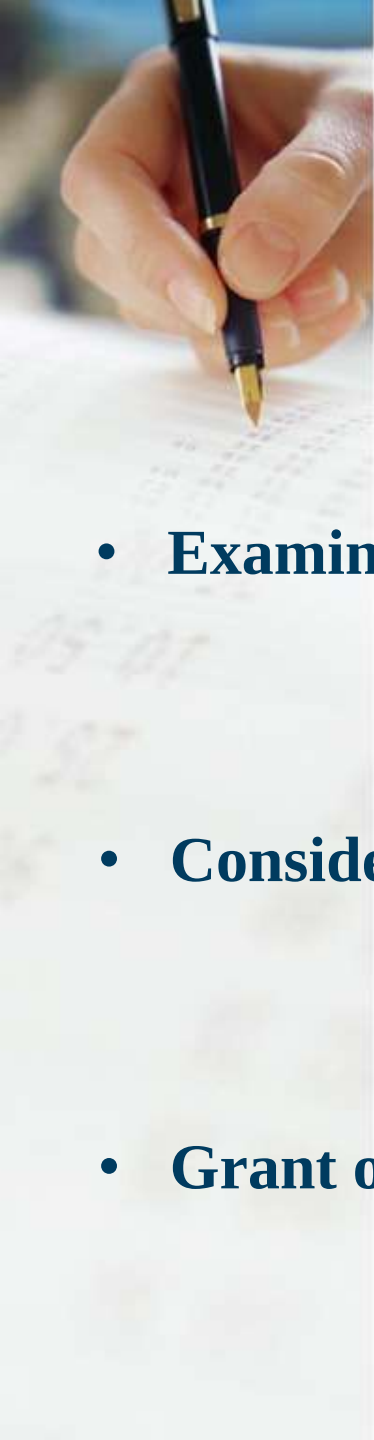
A vertical strip on the left side of the slide shows a close-up of a hand holding a black pen with a gold nib, writing on a white document. The background of the slide is white.

Procedure to grant patent

- **File an application for patent**
- **Formality Check**
- **Publication**
- **Request for Examination**



- **Examination**
- **Issue of FER (First Examination Report)**
- **Response from the Applicant**
- **Pre-grant Opposition and Post-grant opposition**



- **Examination of Pre-grant Opposition**
- **Consideration of Pre-grant Opposition**
- **Grant of a Patent**

A close-up photograph of a hand holding a black pen with a gold nib, writing on a white document. The document has some faint, illegible text and a grid-like pattern. The hand is positioned in the upper left corner of the frame.

File an application for patent

- File an application for patent
 - With one of the **patent offices** based on territorial jurisdiction of the place of office or residence of the applicant /agent
 - Pay the required **fee**
- Information concerning application form and details of fee available at www.ipindia.nic.in
- Guidelines for applicants also available on this website

A vertical image on the left side of the slide shows a close-up of a hand holding a black pen with a gold nib, writing on a document. The document has some faint, illegible text and a grid-like pattern. The background is blurred.

Formality Check

- An Examiner checks the formal requirements before accepting the application and the fee – this is done immediately.
- Issue of application number and the cash receipt – this is done the same day.
- In case of receipt of application by post, cash receipt, application number is sent by post within 2-3 days

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Publication

- Application is **kept secret** for a period of **18 months** from the date of filing.
- In **19th month**, the **application is published** in the **official journal** – this journal is made available on the website weekly



- Indian patent office will publish patent applications after 18 months. This is an **automatic event** and you **need not make any request**.
- Applicant has an option to get his application **published before 18 months** also
- In that case, **application is published within one month of the request**

A close-up photograph of a hand holding a black pen with a gold nib, writing on a document. The document has some faint, handwritten text and a grid-like pattern. The image is positioned on the left side of the slide.

Request for Examination

- Application is examined **on request**
- **Request for examination** can be **made** either by the **applicant** or by a **third party**
- A period of **48 months**, from the date of filing, is available for **making request** for examination

A close-up photograph of a hand holding a black pen with a gold nib, writing on a document. The document has some faint, handwritten text and a grid-like pattern. The image is positioned on the left side of the slide, partially overlapping the title.

Examination

- Application is sent to an Examiner within 1 month from the date of request for examination
- Examiner undertakes examination w.r.t.
 - whether the claimed invention is not prohibited for grant of patent
 - whether the invention meets the criteria of patentability

A close-up photograph of a hand holding a black pen with a gold nib, writing on a document. The document has some faint, handwritten text and a grid-like pattern. The background is blurred.

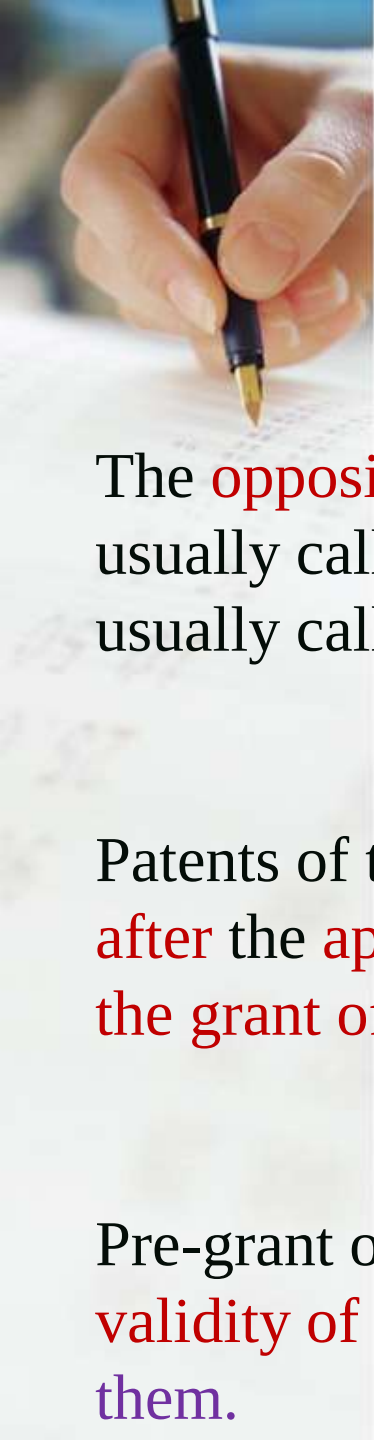
Issue of FER (First Examination Report)

- A period of **1 to 3 months** is available to Examiner to submit the report to the Controller.
- **1 month's time** available to Controller to verify the Examiner's report.
- First Examination Report (FER) containing **list of the objections** is issued **within 6 months** from the date of filing of request.



Response from the Applicant

- 12 months' time, from the date of issue of FER, is available to the applicant to meet the objections.
- If objections are met, grant of patent is approved by the Controller – within a period of 1 month.



Pre-grant Opposition

The **opposition** proceedings **before the grant of a patent** are usually called **pre-grant** and those **after the grant** are usually called **post-grant opposition**

Patents of the **opposition**, in writing against the grant of a patent **after the application for a patent has been published** and/but **before the grant of the patent**.

Pre-grant opposition acts as a **defensive shield** to confirm the **validity of the patent applications** **before patents are granted to them**.

A vertical strip on the left side of the slide shows a close-up of a hand holding a black pen with a gold nib, writing on a document with faint, illegible text.

Pre-grant Opposition

- After publication, an opposition can be filed within a period of 6 months
- Opportunity of hearing the opponent is also available

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Examination of Pre-grant Opposition

- Opposition (documents) is sent to the applicant
- A period of 3 months is allowed for receipt of response

A close-up photograph of a hand holding a black pen with a gold-colored tip, writing on a white document. The document has some faint, illegible text and a grid-like pattern. The background is blurred.

Consideration of Pre-grant Opposition

- After examining the opposition and the submissions made during the hearing, Controller may
 - Either reject the opposition and grant the patent.
 - Or accept the opposition and modify/reject the patent application.
- This is to be done within a period of 1 month from the date of completion of opposition proceedings

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Grant of a Patent

- A certificate of patent is issued **within 7 days**
- Grant of patent is published in the official journal

Patent Grant

Filing of patent application

Early Publication

months

Publication after

18

**Pre Grant Opposition /
Representation by any
person.**

Request for examination

Examination: Grant or Refusal

Publication of Grant of patent

**Post Grant Opposition to grant of
patent (Constitution of Opposition
Board)**

A close-up photograph of a hand holding a black pen with gold accents, writing on a document. The document has some faint, handwritten text in red ink, including the numbers '05-01' and '97'. The background is blurred.

Renewal Fee

- No fee for 1st and 2nd year
- Renewal fee, on yearly basis, is required to be paid for 3rd to 20th for keeping the patent in force
- Delay upto six months from due date permissible on payment of fee for extension of time
- Patent lapses if renewal fee is not paid within the prescribed period



Rights of a patentee

1. Right to exploit the patent.

- ✓ The patentee has a right to prevent 3rd parties, from exploiting the patented invention.

2. Right to grant license.

- ✓ The patentee has a power to assign rights or grant license.

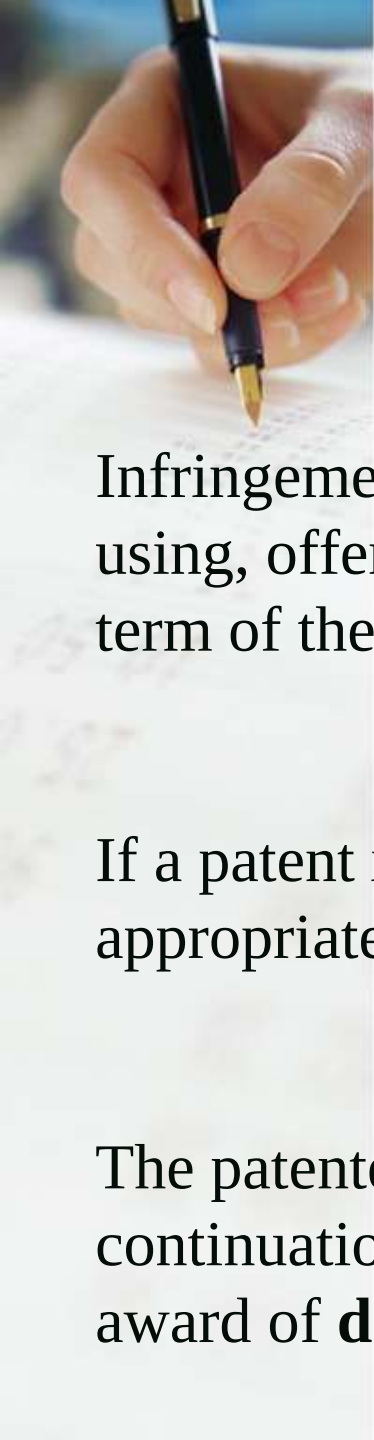
3. Right to surrender.

- ✓ The patentee is given the right to surrender the patent by giving notice in prescribed manner to the controller.

4. Right to sue for infringement.

- ✓ A patentee is given the right to institute proceeding for infringement of the patent in a district court.

5. He has the right to assign his right to a third person



Infringement

Infringement of a patent consists of the unauthorized making, using, offering for sale or selling any patented invention during the term of the patent.

If a patent is infringed, the patentee may sue for relief in the appropriate Federal court.

The patentee may ask the court for an **injunction** to prevent the continuation of the infringement and may also ask the court for an award of **damages** because of the infringement

